

Mahesh Sharma v. Pashchimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 26 July 2021 · WRIT - C No. - 16028 of 2021 · **Writ disposed; petitioner relegated to Clause 6.5 before Executive Engineer.**

HEADNOTE

A writ raising grievances against Pashchimanchal Vidyut Vitran Nigam Ltd. is not the proper course. The petitioner must invoke Clause 6.5 of the Electricity Supply Code, 2005 before the Executive Engineer, Vidyut Nagri Vitran Division IInd, Noida. The petition is disposed of on that statutory representation.

FACTUAL SUMMARY

Mahesh Sharma filed Writ-C No. 16028 of 2021 in the Allahabad High Court against Pashchimanchal Vidyut Vitran Nigam Limited and three others, seeking relief on grievances against the distribution licensee. Counsel entered appearance for the Nigam and its officers. The matter came before a Division Bench on 26 July 2021. The court did not examine the underlying dispute and identified the Executive Engineer, Vidyut Nagri Vitran Division IInd, Noida, District Gautam Budh Nagar, as the officer before whom the petitioner was to proceed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Clause 6.5 as alternate remedy to writ

HOLDING

Where a consumer brings grievances against the distribution licensee by writ, the proper course is a representation to the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005; the writ is disposed of on that alternate remedy without a merits determination. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Division Bench treated Clause 6.5 as the proper course and disposed of the writ without deciding the grievances on merits. ¶ 1

6.5-representation-as-appropriate-remedy The petitioner was directed to approach the Executive Engineer, Vidyut Nagri Vitran Division IInd, Noida, by invoking Clause 6.5. ¶ 1

clause-6.5-representation-executive-engineer Respondent no. 4, the Executive Engineer of the Noida division, was named as the officer before whom the Clause 6.5 representation was to be made. ¶ 1

clause-6.5-statutory-remedy Clause 6.5 of the Electricity Supply Code, 2005 was identified as the statutory forum for the petitioner's grievances. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S GRIEVANCES AGAINST THE LICENSEE

The court did not examine the substance of the dispute and relegated the petitioner to Clause 6.5. ¶ 1